

1 ENGROSSED HOUSE
2 BILL NO. 3787

By: Chapman and Sneed of the
House

3 and

4 McIntosh of the Senate
5
6

7 An Act relating to elections; prohibiting persons who
8 are not qualified electors from filing as candidates
9 for any municipal office; prohibiting nonqualified
10 electors from being appointed to any unexpired term
11 for elected municipal office; amending 26 O.S. 2021,
12 Section 5-105, as amended by Section 1, Chapter 43,
13 O.S.L. 2022 (26 O.S. Supp. 2025, Section 5-105),
14 which relates to registration requirements for
15 candidates for state or county office; requiring
16 candidates to be qualified electors; prohibiting
17 nonqualified electors from being appointed to any
18 unexpired term for elected state or county office;
19 prohibiting nonqualified electors from being elected
20 to or serving on a board of education for a school
21 district or technology center school district;
22 prohibiting nonqualified electors from being
23 appointed to any unexpired term for elected board of
24 education of a school district or technology center
school district office; providing for codification;
and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 16-115 of Title 11, unless there
is created a duplication in numbering, reads as follows:

Any person who is not a qualified elector as described in
Section 1 of Article III of the Oklahoma Constitution may file as a

1 candidate for any municipal office. Such persons shall also be
2 prohibited from appointment to any unexpired term of any elected
3 municipal office.

4 SECTION 2. AMENDATORY 26 O.S. 2021, Section 5-105, as
5 amended by Section 1, Chapter 43, O.S.L. 2022 (26 O.S. Supp. 2025,
6 Section 5-105), is amended to read as follows:

7 Section 5-105. A. To file as a candidate for nomination by a
8 political party to any state or county office, a person must have
9 been a registered voter of that party for the six-month period
10 immediately preceding the first day of the filing period prescribed
11 by law and, under oath, so state. Provided, this requirement shall
12 not apply to a candidate for the nomination of a political party
13 which attains recognition less than six (6) months preceding the
14 first day of the filing period required by law. However, the
15 candidate shall be required to have registered with the newly
16 recognized party within fifteen (15) days after such party
17 recognition.

18 B. To file as an independent candidate for any state or county
19 office, a person must have been registered to vote as an independent
20 for the six-month period immediately preceding the first day of the
21 filing period prescribed by law and, under oath, so state.

22 C. To file as a candidate under either subsection A or B of
23 this section, a candidate must be a qualified elector as described
24 in Section 1 of Article III of the Oklahoma Constitution.

D. Any person who is not a qualified elector as described in
Section 1 of Article III of the Oklahoma Constitution may be
appointed to any unexpired term of any elected state or county
office.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13A-112 of Title 26, unless there is created a duplication in numbering, reads as follows:

No person may be elected to a board of education of a school district or technology center school district who is not a qualified elector as described in Section 1 of Article III of the Oklahoma Constitution. Such person shall be prohibited from appointment to any unexpired term of any elected board of education of a school district or technology center school district office.

SECTION 4. This act shall become effective November 1, 2026.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the day of , 2026.

Presiding Officer of the Senate